
Journal

1985 PSC 143

Court

SUPREME COURT

Date

1984-02-16

Appeal No.

CRIMINAL APPEAL NOS. K. -21 TO K-33 OF 1983

Judge

ASLANT RIAZ HUSSAIN, ABDUL KADIR SHAIKH AND S. A.NUSRAT

Parties

MIAN MUNIR AHMAD VERSUS THE STATE

Lawyers

FOR THE APPELLANT: MANSOOR AHMAD KHAN, ADVOCATE SUPREME COURT WITH SHABBIR GHURY, AOR.FOR THE RESPONDENT: A. SATTAR SHAIKH, ADDL. ADVOCATE GENERAL SIND WITH MUZAFFAR HASSAN, AOR.

Statutes

CRIMINAL PROCEDURE CODE (V OF 1898) - S. 249-A CRIMINAL PROCEDURE CODE (V OF 1898) - SS. 249-A, 265-K AND 561-A CRIMINAL PROCEDURE CODE (V OF 1898) - S. 561-A INDUSTRIAL RELATIONS ORDINANCE (XXIII OF 1969) - SS. 35, AND 36 MINAL PROCEEDING PENDING BEFORE LABOUR COURT ON GROUND THAT LABOUR CONSTITUTION OF PAKISTAN (1973) - ARTICLE 185 (3) CRIMINAL PROCEDURE CODE (V OF 1898) - S. 561-A INDUSTRIAL RELATIONS ORDINANCE (XX111 OF 1S69) - SS. 35, 36 WEST PAKISTAN INDUSTRIAL AND COMMERCIAL EMPLOYMENT (STANDING ORDERS) ORDINANCE (VI OF 1968) - S. 7 (2), AND S. 2 (8) CRIMINAL PROCEDURE CODE (V OF 1898) - S. 561-A

Judgment

Aslant Riaz Hussain, J.-This judgment will dispose of Criminal Appeal Nos. K-21 to K-33 of 1983, as they arise out of the same facts, between the same parties and are directed against the same judgment of the Sind High Court dated 13-2-1983.

% 2. Facts giving rise to the present appeals are, briefly, as follows "Mian Munir Ahmad and Sons Ltd (hereinafter called "the company" which has its registered office at Wallace Road, off LI.

Chundrigar Road, Karachi. The company run* a beverage bottling at their factory which is stated in the S.I.T.E. at Kotri in District Dadu".

3. The appellant, as Managing Director of the company sits at the registered office at Karachi and only visits the Factory and when the need arises. The affairs of factory are under the direction and supervision of the Factory Manager whose name is communicated to the Factories Inspector as required by the Factories Act, 1934, and is shown in various 'Returns' under the law. According to law it is the Factory Manager who is directly incharge and responsible for the working and operating of the factory.

For the manufacture of its product (Pepsi Cola) the factory employs its own workmen, who are on the pay roll of the factory.

But in respect of certain other works, for example construction of new building etc. within the premises of the factory, the same is entrusted to contractors who employ their own labour. Similarly, for loading and un-loading of the material in the factory, the company/factory instead of employing its own labour awards the work to a contractor on lumpsum basis. The said contractor then performs the work through his own labour, employed in his own discretion and in accordance with the quantum of the work involved.

4. According to the appellant, during the season in question the contract of loading and un-loading the material in the factory was awarded by the company to one Abdul Hamid contractor, who had employed his own labour for the said work. These workers, it is asserted, had nothing to do with the company, directly or indirectly.

5. On the 25th of September, 1980, Mr. Nadir Khan, as Assistant Director in the Labour Department at Hyderabad, visited the factory and during the inspection he found a number of faults with the working of the factory involving breach of labour laws. He pointed out, inter alia, that the contractor's workers had been issued attendance tickets as required by section 2 of Schedule under section 2 (g) of the West Pakistan (Standing Orders) Ordinance, 1968 (hereinafter called the Standing Orders Ordinance).

It was explained to him by the Factory Manager that the workers in question were not employees of the Factory but were those of the contractor. Nadir Khan, Assistant Director appeared to be satisfied by explanation and left the factory. But subsequently, on 4-10-1980, he issued a show cause notice to the appellant factory in which a number of allegations were made, inter alia, the contravention of section 2 of Schedule under section 2 (g) of the Standing Orders Ordinance, in respect of non-issuance of attendance tickets to the 'workers of the contractors'. The notice may be re-produced here, in extenso, for facility of reference

"To The Manager/Occupier.

Fazal Sons, Ltd , Site, Kotri, District Dadu.

Sub :-Inspection under various Labour Laws.

Dear Sir, The undersigned inspected your factory on 25-9-1980 and detected the following irregularities.

(1) That the Register of Adult workers was not maintained on form M and MI as required under section 41 of the Factories Act.

(2) That the Fire Alarm has not been provided as required under section 25 (5) of the Factories Act.

(4) The emergency lightening arrangement were not provided as required under section 19-B of the Factories Act.

(4) That the workers of Contractor have not been provided with Attendance Ticket, as required under section 2 (g) of the Standing Orders Ordinance, 1968.

You are hereby called upon to Show Cause within seven days of the receipt of this letter as to why legal action may not be taken against you for the above violations of labour law.

Yours faithfully, (Sd.) (Nadir Khan Yousafzai) Assistant Director Labour (Inspection) Hyderabad".

(underlining is ours-here in italics) The reply to the notice was duly sent by the company vide letter dated 27-10-1980, denying, inter alia, the contravention of the provisions of the Standing Orders Ordinance as alleged therein.

Nadir Khan, however, went ahead and filed 13 different complaints against the appellant, one in respect of each worker, in VI- Labour Court.

The Factory Manager duly informed the Managing Director (i.e. the appellant) about the filing of these complaints and attended the Court the date fixed for bearing i.e. 25-4-1981. it was, however, revealed on that date that bailable warrants had already been issued against Munir Ahmad appellant, the Managing Director of the company, requiring his presence in person, although, according to the appellant he had never been served with the process of the Court. On a prayer made by the Factory Manager the case adjourned to 9-5-1981, with a direction that the appellant be produced in person on that date.

On the next date of hearing the appellant attended the Court ; furnished the required security and executed bail bonds in each case. ' He also filed an application for exemption from personal attendance. The hearing of this application was, however, postponed from time to time, with the result that the appellant was forced to attend the Court on each and every date of hearing, although the Factory Manager was also regularly attending the Court. The appellant was, thus, subjected to considerable harassment. The appellant also moved an application under section 249-A Cr. PC. The appellant, also moved the Sind High Court through applications under section 561-A Cr. PC., for the quashment of the criminal proceedings pending against him in the Labour Court at Hyderabad. This petition was heard by a learned Single Judge of the Sind High Court, but were dismissed on 4-31-1981, on the ground that the remedy available under section 249-A Cr. PC., should first be exhausted.

Jke appellant accordingly pressed his applications under section 249-A Cr. PC., which were already pending before the learned Labour Court, these were, however, dismissed by the trial

Court on 21-11-1981, on the ground of lack of jurisdiction. Fresh applications under section 249-A Cr. PC one in each case, were, however, moved on grounds which had not been considered by the trial Court in its earlier order. The learned uial Court again dismissed the applications by an order dated 6-3-1982. thereafter the appellant repeated the applications under section 561-A cr. PC. before the Sind High Court. Karachi. All the 13 applications were admitted to regular hearing, but were ultimately dismissed by a learned Single Judge of that Court on 13-2-1983, on the ground that the High Court had no jurisdiction to exercise its inherent powers under section 561-A Cr. PC., to quash proceedings pending before a Labour court as the same was not a Court subordinate to the High Court.

Feeling aggrieved the appellant filed 13 separate petitions for leave to appeal. Leave was granted to him on 19-4-1983 to consider as to whether or not the High Court was correct in taking the view that it had no jurisdiction under section 561-A Cr.

PC in respect of the proceedings pending before the Labour Court, which was dealing with the case "in its capacity as a section 30 Magistrate".

, have heard the learned counsel for the appellant as well as the learned Additional Advocate General at considerable length and have also gone through the impugned judgment and the authorities cited by each side.

We notice that the view taken by the High Court is based solely on the ground that since appeals against decision of a Labour Court in criminal cases do not lie to the High Court, it is not a criminal v.OUo- or 'inferior' to the High Court and, as such, the High Court has no jurisdiction to quash criminal proceedings pend-Ing before the Labour Court in exercise of its powers under section foil rcevant portion of the impugned judgment reads as main question which requires consideration is, whether the Labour Court in question is Court subordinate to the High Court . and/or inferior to the High Court so as to attract the provisions of section 561-A Cr. PC. The question of inferior Court and/or subordinate Court has been very clearly laid down by the Hon'ble Supreme Court m the case of Abdul Hafiz v. State, reported in PLD 1981 SC 352. In this judgment the Hon'ble Supreme Court has held, that even a special Court, if its orders have been made appealable to High Court, irrespective of the finality attached to its orders, would be inferior to the High Court by virtue of fact that its order having ma<" appealable to High Court In the present case the orders of the Labour Court under section 37 (3) of LRO 1969 is appealable to Labour Appellate Tribunal and not to this Court and as such the Labour Court cannot be considered as inferior Court and/or Subordinate Court to the High Court, so as to attract the provisions of section 561-A Cr. PC. On the basis of above referred decision of the Hon ble Supreme Court, the Divisional Bench of this Court, in the ' Abdul Rahim v. Abdul Rauf in Criminal Misc. Appeal No. 857/82, by its judgment dated 23rd November, 1982 to which I was alio party as held, that the main factors which needs consideration in deciding questions of this nature, i.e. of subordination is the venue of appeal. Under the 1RO appeal against the decision of the Labour Court has been provided to Labour Appellate Tribunal and not to this Court and since Labour Court is a special Court and admittedly it has not been established under the provisions of the Criminal Procedure Code, it cannot be considered to be inferior to the High Court, and/or subordinate to the High Court, so as to attract the provisions of section 561-A Cr. PC." It appears that in arriving at this conclusion the learned Judge in Chamber was influenced by the observations of this Court in Abdul Hafeez v. The State, PLD 1981 SC 352.

A reading of that judgment would, however, show that the case decided thereby related to the revisional powers of the High Court under section 435/439 Cr. PC and there is no mention therein of section 561-A Cr. PC. It would be noticed that section 435 Cr. PC expressly provides that the High Court can exercise its revisional jurisdiction only with respect to the proceedings

pending before criminal Courts, inferior to it, whereas section 561-A Cr. PC makes no mention of inferior or subordinate Courts and empowers the High Court to exercise its jurisdiction thereunder with respect to proceedings in any Court.

7. We are, therefore, of the view that the observations in the case of Abdul Hafiz {supra} are not applicable to the facts of the case in hand. The relevant portion of section 435 Cr. P.C. reads as follows "Power to call for records of Inferior Courts (1) The High Court or any Sessions Judge or District Judge, or any Sub-Divisional Magistrate empowered by the Provincial Government in this behalf, may call for and examine the record of any proceeding before any inferior Criminal Court situate within the local limits of its or his jurisdiction for the purpose of satisfying itself or himself as to the correctness, legality or propriety of any finding, sentence or order recorded or passed, and as to the regularity of any proceedings of such inferior Court and may, when calling for such record, direct that the execution of any sentence be suspended and, if the accused is in confinement, that he is released on bail or on his own bond pending the examination of the record.

Explanation.-All Magistrates, whether exercising original or appellate jurisdiction, shall be deemed to be inferior to the Sessions Judge for the purposes of this subsection....." 8. The learned counsel for the appellant attempted mainly to meet this objection and to show that the Labour Court was, in fact, inferior and subordinate to the High Court and, as such, power under section 561-A Cr.P.C. could be exercised to quash the proceedings pending before it. He referred to section 35 of the Industrial Relations Ordinance, to submit that the Labour Court was empowered to try offences, inter alia, under the Standing Order Ordinance. The relevant portion of this section, i.e. S. 35(5) reads as follows 35(5)(c), 35(1)

(3) (4) (5) A Labour Court shall

(c) try offence* under this Ordinance, and such other offences under any other law as the Provincial Government may, by notification in the official Gazette specify in this behalf".

He then read out the following portions of section 36 of the I.R O to urge that the Presiding Officer of the Labour Court had been constituted as a section 30 Magistrate and was to try criminal cases as such S. 36(1) and "36.-Procedure and powers of Labour :- (1) Subject to the provisions of this Ordinance, while trying an offence, a Labour Court shall follow as nearly as possible summary procedure as prescribed under the Code of Criminal Procedure, 1898, (2) (3) A Labour Court shall, for the purpose of trying an offence under this Ordinance, or the West Pakistan Industrial and Commercial Employment (Standing Order) Ordinance, 1968 (W.P. Ordinance VI of 1968), has the same powers as are vested in the Court of a Magistrate of the first class specially empowered under section 30 of the Code of Criminal Procedure 1898 (Act V of 1898)".

He referred to section 6 of the Criminal Procedure Code to show that there shall be the following classes of subordinate criminal Courts in Pakistan Court of Session* ; (it) Magistrate of the first class ; (in) Magistrate of the 2nd class ; and (iv) Magistrate of the 3rd class." He then pointed out that section 14 of the Cr. P.C., authorises the Provincial Government to appoint Special Magistrates in respect of particular class of cases and urged that the Presiding Officer of the Labour Court was, in fact, a Special Magistrate under the Code of Criminal Procedure appointed to try a special class of cases referred to in section 35 of the I.R.O.

After laying this foundation he argued that it was evident that (0 a Labour Court exercising the powers under subsection (3) of section 36 of the I.R O. is a Magistrate with powers under section 30 Cr. P.C....." 00 tha* Labour Court, while acting as a Magistrate must be deemed to be a

Special Magistrate appointed under section 14 read with section 6 Cr. P.C. and (Hi) that, therefore, while acting as a Magistrate the Presiding Officer of a Labour Court is, in fact, a criminal Court subordinate to the High Court.

9. The learned Additional Advocate General, appearing for the State, confined himself to reiterating the reasons recorded by the High Court in the impugned judgment for arriving at its conclusion.

10. We have given our careful consideration to the question involved in this case.

We notice that the High Court has based its decision on the question in issue on the concept 'subordination' i.e., on the assumption that the High Court can interfere in exercise of its jurisdiction under section 561-A Cr. P.C., only in such criminal proceedings as are pending before a criminal Court inferior or subordinate to it. With utmost respect, this was not the correct approach to the question.

11. The matter, in our view, is not to be adjudged on the basis as to whether or not a Labour Court is subordinate to the High Court or whether an appeal from its decision lies to the High Court or some other forum. What is to be determined is whether the provisions of section 561-A, Cr. P.C. apply to criminal proceedings pending before the Presiding Officer of a Labour Court. If section 561-A Cr.P.C. applies then the High Court can certainly exercise its jurisdiction under the said section.

It may be mentioned that although section 36 of the I.R.O. provides that for the purpose of trying offences under the Standing Order Ordinance, a Labour Court has the same powers of Magistrate 1st Class specially empowered under section 30 Cr. P.C., yet there is nothing to indicate that he is appointed as a 'Special Magistrate' under section 14 of the Criminal Procedure Code. It cannot therefore be said that he was functioning as a 'Magistrate envisaged by section 6 of the Cr. P.C. and was thus subordinate to the High Court.

In our opinion the relevant provision for the purpose of this case is subsection (2) of section 5 of the Cr. P.C. For facility of reference the whole of section 5 may be reproduced here S. 5 Cr. P. C.-"Trial of offences under Penal Code (1) All offences under the Pakistan Penal Code shall be investigated, inquired into, tried, and otherwise dealt with according to the provisions hereinafter contained.

(2) Trial of offences against other laws.-All offences under any other law shall be investigated, inquired into, tried, and otherwise dealt with according to the same provisions, but subject to any enactment for the time being in force regulating the manner or place of investigating, inquiring into, trying or otherwise dealing with such offences-".

This section enumerates the (criminal) cases to which the provisions of the Code of Criminal Procedure shall apply. Section 5(1) lays down that these shall apply to all offences under the Pakistan Penal Code which shall be investigated, inquired into, tried and otherwise dealt with according to the provisions thereof.

Sub-MCUM (2) of the said section relates to application of the provi-"Jf* of .C<?d® of Criminal Procedure, to offences against other laws, which would include offences created by the provisions of Section 2 of the CUDderuCCt!0nu2(g) °f the W-P' <Stand'n Orde.) Ordinance, 1968. It lays down that (subject to any enactment to the contrary) al offences under any other law shall be investigated, inquired into, tried or otherwise dealt with, according to the provisions of the Cr P.C. In other words except to the extent it is specifically excluded by the special

enactment, cases under 'other laws' shall also be investigated, tried or otherwise dealt with, in the manner provided by the provisions of the Cr. P.C. According to the provisions of subsection (1) of Section 36 of the I.R.O., the mode of trial of case, triage by the 'Labour Court shall be as nearly as possible the same as prescribed in the Code of Criminal firWhirh

Thc[fore'.notfitstandin8 the fact that the case before it is such which would ordinarily be tried by the procedure provided for example, in Chapter XXII-A of the Cr. P.C. the Labour Court shall try >t only according to the summary procedure prescribed in Chapter XX of h* Cr- But tt wdl be noticed that there is mention in the I.R O as to the manner in which cases trialable by a Labour Court, shall be investigated, inquired into or "otherwise dealt with". In other words the provisions of the Cr. P.C. will be applicable for these purposes.

13. The question as to whether or not any proceedings pending trial before a court should be quashed under section 561-A Cr.

PC. neither relates to investigation nor inquiry into or trial of that case, but would be covered by the expression "otherwise dealt with". Therefore, the provi-sions of Section 561-A Cr.P.C. would be applicable to a criminal case being tried by a Labour Court under Sections 35/36 of the I.R.O., notwithstanding the fact that the Labour Court is not subordinate to the High Court and that an appeal from its decision does not lie to the High Court but to tie Labour Appellate Tribunal under Section 37 of the I.R.O.

ComirVck Tm UCXT qu,est.loa,t° be considered is whether or not the High Court should have reframed from exercising its power under section 561 A Cr P.C. in view of the provisions of section 249-A. The last mentioned section empowers the trial Magistrate to acquit the accused at any sta-ns of the case, after hearing the prosecutor and the accused, if it considers that no case is made out against the accused or that there is no probability of he accused being convicted under the offence alleged against him This power is, indeed very similar to the power conferred on The E Court by section 561-A Cr. P.C., inler alia, "to prevent the abuse of the process or any court". While considering the nature of the powers of the trial courts under section 249-A Cr. P C. it was observed byM Justice ?979 praCr' LJ'.hTt CaSf of Din Muhammad v. Muhammad Sharif, 1979 P. Cr L J. 59, that a special court, whether civil or criminal in the absence of any provisions of the procedural law is deemed to possess SIToTc1C»1C7 /faCly°Vtl BCIDG * ?°Urt of ,aw and s 249 A Cr. P.C., is merely declaratory of the said principle" We are T/sec Sny249 A C? PCrio Wlt,h thisfview- foll°ws that the provisions of bection 249-A Cr P.C. do not interfere with the inherent iurisdiciion RL Hcgh C™rJ> I5111' OD the other hand» a» hdd in Butani Papo Udhamam 'krJr\\Slc,e' TLD 980 Kar'- 49, the powers of thc High Court and the Special Court, are co-extensive and concurrent in this respect. No doubt ordinarily, the trial court should be approached in the first instance, as was done in the present case.

15. It may be mentioned that there are some decisions of the High Court wherein it has been held, on the basis of Khushl Muhammad and others v. The State, 1979 SCMR 94 that the High Court can no longer interfere under Section 561-A Cr. P.C. to quash criminal proceedings pending trial, because similar powers have now been conferred on trial court, by Section 249-A Cr. P.C. and 265-K Cr. P.C. This view is, however, based on a mis- interpretation of the above-noted judgment of this Court. Although in that case this court dismissed the Petition for Leave to Appeal against the refusal by the High Court to exercise its jurisdiction under section 561-A Cr. P.C., but as observed by this Court in Syed Manzoor Hussain Shah v. Syed Agha Hussain Naqvi and another, 19S3 SCMR 775, the main reason for dismissing the petition was that on the facts as they stood at the time when the matter was heard by it, the High Court was justified in refusing to quash the proceedings. This is evident from the following observation in the case of Mushi Muhammad : - "We further observe that the order of the High Court was passed on 26-8-1978 and on the material then available on the record no objection could legitimately be taken to

the order of the High Court dismissing the quashment petition. It is only on the 20th September 1978, after the statement of Abdul Ghani (PW. 5) was recorded, that the argument that there is no likelihood of the petitioners being convicted and their continuing prosecution would be an abuse of the process of the Court has become available. The order of the High Court cannot, therefore, be said to be erroneous and liable to be set aside in the present proceedings." 16. As a result of the above discussion we hold ; that provisions of section 561-A Cr. P.C. apply to the proceedings pending before any court, whether subordinate to the High Court or not, unless the offence being tried is an offence under any law other than the Pakistan Penal Code and the power has been specifically taken away by any enactment relating to the said (special) law ; and That the powers of the trial court under section 249-A Cr. P.C. and 265-K, Cr. P.C. are co-extensive with the similar powers of the High Court under section 561-A Cr. P.C., and both can be resorted to.

It would, of course, be proper to approach the trial court in the first instance but there is nothing to bar the High Court from entertaining, in appropriate cases, an application under section 561-A Cr. P.C. directly.

17. The legal questions having been resolved, we now proceed to decide the case in hand on merits.

As already observed in the narration of facts, the appellant (Mian Munir Ahmad) is the Managing Director of the Factory in question. He lives in Karachi and works at his head office situated on Wallace Road, off I. 1. Chundrigar Road, Karachi, while the factory where the product is manufactured, is situated at Kotri in District Dadu. The affairs of the factory are looked after by the Factory Manager and are under his direct supervision and control. Mr. Nadir Khan, Assistant Director of the Labour Department, at Hyderabad, visited and inspected the Factory at Kotri on 25-9-1980. Thereafter on 4-10-1980 he issued a show cause notice (attached at page 335 of the Paper Book) stating various contraventions of the Labour Laws committed by the appellant. The relevant contravention, mentioned in para 4 of the said show-cause notice is in the following words "That the workers of the contractor have not been provided with attendance ticket, as required under section 2 (g) of the (Standing Order) Ordinance, 1968." (Underlining is ours, Here in Italics) It may be mentioned that according to section 2 of the Schedule under section 2(g) of the West Pakistan (Standing Order) Ordinance, 1968, a factory owner is required to issue an attendance ticket to every worker, employed by it and an omission to do is punishable.

The Company, of course, denied these allegations, whereupon Nadir Khan filed 13 separate complaints, each relating to one labourer, against the appellant by name, in his capacity as "employer". Being a short one it might be useful to reproduce one of the complaints (all 13 of which are identical), in extenso, for facility of reference "Case No. 2/81.

In the Court of Presiding Officer, Labour Court No. VI-Hyderabad.

Prosecution Under the W.P. (Standing Orders) Ordinance, 1968.

Complaint : Nadir Khan Yousafzai, Assistant Director Labour * (Inspection), Hyderabad.

Accused : Mian Munir Ahmad Occupier.

That the accused is the Employer of the Factory known as Fazal and It is submitted as under Sons Limited SITE, Kotri, District Dadu duly covered by the above Act.

That the factory mentioned above was inspected by the undersigned on 25-9-1980 and the

following serious breaches of the Act and Rules were discovered The worker named Ghulam Bux son of Roshan Din working as Loader on Contract was not given any ticket under (Standing Orders) Ordinance.

That the accused named above have thereby committed an offence under section 2 of Sch. 2(g) of the W.P. (Standing Order) Ordinance 1968 punishable under section 7(2) and (3) of the said Ordinance.

It is, therefore, prayed that accused may please be dealt with according to law.

Witness: Sd/- Dr. Mohan Lai Dhirwahi, (Nadir Khan Yousafzai) Medical Inspector of Inspector of Factories and Factories, Hyderabad. Assistant Director, Labour, Hyderabad".

The appellant took up the position that the contract of loading and unloading during the "current season" had been given to a contractor who employed his own labour.

17. It would be noticed that in paragraph 3 of the complaint the worker in question is described as working as "Loader on Contract". Now, this is a very ingenious alteration in the wording. It would be recalled that according to paragraph 4 of the Show Cause Notice issued by Nadir Khan, after inspecting the Factory, the contravention alleged was that "the workers of the contractor" had not been issued attendance tickets.

The appellant took up the position that during the relevant season the contract of the work of loading and unloading had been given by the Company to one Abdul Hamid Contractor, who had employed his own labour for that purpose and that the workers mentioned in the notices/ complaints had neither been employed by the Factory nor were they on the pay roll of the Factory.

The management of the factory was not even aware of the number of the workers employed by the contractor or about the terms and conditions of their appointment or service. As such the Factory Management was not required to issue them any attendance tickets under the relevant law, i.e. Section 2 of Sch. 2(g) of the W P. (Standing Order) Ordinance.

Having realized this flaw in the Show Cause Notice, Nadir Khan, Assistant Director, who appears to have been bent upon harrasing the appellant, made a slight alteration in the wording of the allegation, resulting in a significant change in its meaning and filed the complaints. He probably thought that this change in the wording would be sufficient to camouflage the actual position and that by using the word "contract" in the complaint he could easily explain away the expression "workers of the contractor" used by him in paragraph 4 of the Show Cause Notice. He has, however, not been able to hoodwink anyone and it is quite clear that in the Show Cause Notice the only allegation with respect to nonissuance of the attendance tickets was that the same had not been issued by the Factory to the "workers of the contractor".

18. It is an admitted position that an employer is required to issue such tickets only to the persons employed by him as workers.

This stands to reason, because a Factory owner may need, for example, to erect an additional structure within the factory premises and for this purpose he may employ a building contractor on the terms settled with him. Naturally the contractor would employ his own labour who would obviously not be the employees of the Factory. Nor would, in such a case, the Factory Management be responsible for them in any manner and would not be required to issue attendance tickets to such workers under Section 2 of Sch. 2(g) of the (Standing Orders)

Ordinance* 19. Non-issuance of Attendance Tickets to the 13 workers in question, is the only charge being pressed against the appellant who is required to come all the way from Karachi and attend the Labour Court at Hyderabad on each date of hearing. It is, however, crystal clear that since the allegation in the Show Cause Notice which is prior in time as compared to the Complaint, relates to the workers of the contractor, i.e. the workers employed by the Contractor, the case against the appellant must, ultimately, fail. It is, therefore, regrettable that the said Nadir Khan should have been permitted to harass the appellant on an allegation of this nature. It is well known that the Factory Inspectors have vast powers which some of them do not hesitate to misuse.

20. As a result of the above discussion we allow all the 13 appeals and quash the criminal proceedings pending against the appellant before the Labour Court VI at Hyderabad under Section 2 of Sch. 2(g) of the (Standing Order) Ordinance.

21. It will be open to the appellant to seek his remedy against Nadir Khan, Assistant Director before the appropriate criminal or civil Court, if so advised.

Appeal allowed.

easylaw Case No.

1113934

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